STANDATA interpretation 23-BCI-034

Building

Elevator operation and accessibility for residential buildings

Date Issued: March 2025

Purpose

This is to clarify the application of the National Building Code – 2023 Alberta Edition (NBC(AE)) for elevators to be operational in residential buildings required to have a barrier-free path of travel.

Discussion

Municipal Affairs and authorities having jurisdiction have received numerous complaints from residents that their buildings have no working elevators over long periods of time, placing residents with mobility issues with impeded access to or from their residential units. This poses serious health and safety concerns for both seniors and persons with disabilities. Safety Codes Officers (SCOs) have indicated to Municipal Affairs that there is uncertainty with respect to safety codes concerning the authority to direct an owner to take all necessary steps to place an elevating device into operation.

The NBC(AE) requires at least one elevator to be available for firefighter use at all times for high-rise buildings, but this requirement does not directly apply to access and use by building occupants. The Elevating Devices Code Regulation (which includes the elevating devices codes) sets rules for the safety of operational elevating devices, but does not require an elevating device to be operational.

The authority for ordering an owner to make an elevator operational is under Article 3.8.2.3. of the NBC(AE). Where a residential building has a requirement for a barrier-free path of travel and is served by a passenger-type elevator or other platform-equipped passenger-elevating device, an operational elevating device is necessary to maintain a barrier-free path of travel and compliance with Article 3.8.2.3. Without an operational elevating device, a barrier-free path of travel is not maintained, and therefore, the building is no longer in compliance with the NBC(AE).

Sentence 3.8.2.1.(1) of the NBC(AE) specifies that barrier-free design requirements apply to all buildings, but also provides exemptions. Sentence 3.8.2.1.(1) exempts detached houses, semi-detached houses, houses with a secondary suite, duplexes, triplexes, townhouses, and row houses/boarding houses that are not used in social programs. For residential buildings not exempted under Article 3.8.2.1., Sentence 3.8.2.3.(1) of the NBC(AE) requires a barrier-free path of travel from the entrance of a building and throughout all normally occupied floor areas (except as permitted by Sentence 3.8.2.3.(2)).

An objective of the NBC(AE) is to limit the probability that a person with physical or sensory limitations will be unacceptably impeded from accessing the building or circulating within it as a result of design and construction.

The *Safety Codes Act* also speaks to being interpreted in a manner consistent with the principles of barrier-free design and access to allow persons with physical and sensory disabilities to more easily and safely access and use buildings, facilities and services to which the Act applies.

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Safety Codes Act

Interpretation
1(1) In this Act,
(3) This Act is to be interpreted in a manner consistent with the principles of barrier-free design and access to allow persons with physical and sensory disabilities to more easily and safely access and use buildings, facilities and services to which this Act applies.

Code References

Article 1.4.2.1.

1.4.1.2. Defined Terms
1) The words and terms in italics in this Code shall have the following meanings:
Barrier-free means that a *building* and its facilities can be approached, entered, and used by persons with physical or sensory disabilities.

Article 3.8.2.3.

3.8.2.3. Areas Requiring a Barrier-Free Path of Travel (See Note A-3.8.2.3.)
1) Except as permitted by Sentence (2), a *barrier-free* path of travel from the entrances required by Sentence 3.8.2.2.(1) to be *barrier-free* shall be provided throughout the entrance *storey* and within all other normally occupied *floor areas*. (See Article 3.3.1.7. for additional requirements regarding *floor areas* above or below the *first storey* to which a *barrier-free* path of travel is required.)
2) A *barrier-free* path of travel for persons using wheelchairs is not required
a) to *service rooms*,
b) to elevator machine rooms,
c) to janitors' rooms,
d) to *service spaces*,
e) to crawl spaces,
f) to *attic or roof spaces*,
g) to the floor level above or below the entrance level in *buildings* no more than 2 *storeys* in *building height* or in 2-*storey suites*, unless the floor level above or below (see Note A-3.8.2.3.(2)(g))
i) is served by a passenger elevator, a platform-equipped passenger-elevating device, an escalator or an inclined moving walk,
ii) is 600 m^2 or more in *floor area*,
iii) contains facilities that are not contained on the entrance level, but that are integral to the principal function of the entrance level,
iv) contains an *assembly occupancy* more than 100 m^2 in *floor area*, or
v) contains a physician clinic or office within the scope of Subsection 3.8.5.,
h) within a parking level with no *barrier-free* parking spaces,
i) within high-hazard industrial occupancies,
j) within portions of a floor area with fixed seats in an assembly occupancy where those portions are not part of the barrier-free path of travel to spaces designated for use by persons using wheelchairs,
k) within floor levels of a *suite* of *residential occupancy* that are not at the same level as the entry level to the *suite*, or
l) within a suite of residential occupancy that has not been required by other provisions of this Code to be barrier-free.
3) In an *assembly occupancy*, the number of spaces designated for wheelchair use within rooms or areas with fixed seats shall conform to Table 3.8.2.3. (See also Article 3.8.3.22. for additional requirements.)

4) The number of spaces designated for wheelchair use within waiting rooms or areas with fixed seats shall conform to Table 3.8.2.3. (See Note A-3.8.2.3.(4).) (See also Article 3.8.3.22. for additional requirements.)

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5) Except as provided in Sentence (6), in an *assembly occupancy* with more than 25 fixed seats, each row of seats served by two aisles shall have one adaptable seat conforming to Subsection 3.8.3. located adjacent to one of the aisles. (See Note A-3.8.2.3.(5) and (6) and 3.8.3.22.(1) and (4).)
6) At least 5% of the adaptable seats required by Sentence (5) but no more than 20 adaptable seats shall adjoin a *barrier-free* path of travel. (See Note A-3.8.2.3.(5) and (6) and 3.8.3.22.(1) and (4).)

Table 3.8.2.3.
Designated Wheelchair Spaces
Forming Part of Sentences 3.8.2.3.(3) and (4)

Number of Fixed Seats in Seating Area	Number of Spaces Required for Wheelchairs
2 - 99	2
100 - 499	3, plus 1 for each additional increment of 70 seats in excess of 100
500 - 1 999	9, plus 1 for each additional increment of 80 seats in excess of 500
2 000 - 7 999	28, plus 1 for each additional increment of 95 seats in excess of 2 000
Over 7 999	91, plus 1 for each additional increment of 100 seats in excess of 8 000

Article 3.8.3.7.

3.8.3.7. Passenger-Elevating Devices
1) Where passenger elevators are used in a *barrier-free* path of travel, features described in Appendix E of ASME A17.1/CSA B44, “Safety Code for Elevators and Escalators,” shall be included in their design and construction.
2) A platform-equipped passenger-elevating device used in a *barrier-free* path of travel shall conform to the Elevating Devices Codes Regulation made pursuant to the Safety Codes Act and shall
a) have a clear floor space not less than 1 500 mm long by 1 000 mm wide, and
b) have entry doors or gates
i) providing a clear width not less than 850 mm in the open position if located on the short side of the passenger-elevating device, or
ii) providing a clear width not less than 1 000 mm in the open position if located at either end of the long side of the passenger-elevating device.

Article 3.5.2.1.

3.5.2.1. Elevators, Escalators and Dumbwaiters
1) The design, construction, installation and alteration of every elevator, escalator, passenger-elevating device, freight platform lift and dumbwaiter shall conform to the Elevating Devices Codes Regulation made pursuant to the Safety Codes Act. (See Note A-3.5.2.1.(1).)
2) Before being placed in service, every elevator, escalator, passenger-elevating device, freight platform lift or dumbwaiter installation, including safety and control devices, shall be inspected and tested in accordance with the Elevating Devices Codes Regulation made pursuant to the Safety Codes Act.
3) Passenger elevators shall conform to Appendix E of ASME A17.1/CSA B44, “Safety Code for Elevators and Escalators.”

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Application

This interpretation applies to residential buildings where a barrier-free path of travel is required and is served by a passenger-type elevator(s) or other platform-equipped passenger-elevating device(s).

Interpretation

This interpretation provides clarification that a building SCO has the authority under the *Safety Codes Act* to enforce the NBC(AE) and require the owner to make the elevating device operational or put in place alternative, equivalent measures for accessibility. The requirement for operational elevating devices to support a barrier-free path of travel came into force on May 30th, 1981, and is applicable from May 30th, 1981, and onward to all buildings with elevating devices.

This interpretation does not mean that an elevating device cannot be taken out of service for maintenance or repairs or because of an emergency. Under reasonable situations, where the owner is diligently attempting to have maintenance or servicing carried out, any enforcement action by the SCO including an order for compliance may not be necessary. In situations where the owner is not cooperating in response to a complaint, or purposely or negligently delaying or preventing the operation of the elevating device(s), a building SCO may issue an order to the owner to place the elevating device(s) in operation and set conditions and timelines for compliance.

This INTERPRETATION is applicable throughout the Province of Alberta.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code – 2023 Alberta Edition

Issued by the Provincial Building Administrator and the Provincial Barrier-Free Administrator

[Original signed]
Paul Chang Paul

[Original signed]
Linnie Tse

Alberta Municipal Affairs – Technical and Corporate Services
Email: safety.services@gov.ab.ca Phone: 1-866-421-6929

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